

35. All claims against damage to goods in transit as specified in clause -34above will be lodged with the carriers by the Buyers and the Sellers are inno way liable to the buyers or any or all such claims.
36. The Sellers shall not be liable for any defect in the goods occurring atthe Buyer's end (by the Buyer's men, material, machinery or management) dueto any reason whatsoever.
37. The rights and liabilities arising out of this sale shall not be assigned by theBuyers to a third party without the written consent of the Sellers.
38. In case of waste, materials are sold as is where is basis and no claimwhatsoever subsequent to lifting of materials from Seller factory will be entertained.